



GOVERNMENT OF INDIA
MINISTRY OF CONSUMER AFFAIRS, FOOD & PUBLIC DISTRIBUTION
DEPARTMENT OF CONSUMER AFFAIRS — LEGAL METROLOGY DIVISION
REGIONAL ENFORCEMENT DIRECTORATE • UP CIRCLE-01 (GAUTAM BUDDHA NAGAR / NOIDA)
Office of the Assistant Controller & Inspector of Legal Metrology, Sector 27, Noida - 201301

FORM - 1
STATUTORY INSPECTION NOTICE & DEFICIT MEMORANDUM

Issued under Section 15(1) & Section 36(1) read with Section 48 of the Legal Metrology Act, 2009 (1 of 2010)
and Rules 6, 18(1), 23, and 32 of the Legal Metrology (Packaged Commodities) Rules, 2011
Certified for Evidentiary Admissibility under Section 63 of the Bharatiya Sakshya Adhiniyam, 2023 (BSA 2023)

Notice Reference No.: LM/NOI/2026/000231/STAT
Statutory Case ID: INS-2026-0002 | Inspection Date & Time: 10-Sep-2026 14:32:08 IST
Jurisdiction / Circle: CIRCLE_UP_GBN_01 (Noida Urban Division, Gautam Buddha Nagar)
Investigating Officer: K. R. Sharma, LMO (Badge ID: DL-LM-2024-0042)
Mode of Service: Spot Notice Execution & Digitally Signed Central Repository Lodgment



TO (ALLEGED CONTRAVENER / RESPONSIBLE ESTABLISHMENT):

Commercial Entity: M/s Great India Refreshments Pvt. Ltd. (Retailer / Packer)
Inspected Premises: Plot No. 12, Sector 18 Commercial Complex, Noida, Gautam Buddha Nagar, UP - 201301
GSTIN / Reg. Number: 09AABCG1234F1Z5 | Trade License: NOIDA-COMM-2021-8841
Person Present during Seizure: Sh. Rajesh Gupta (Authorized Store Manager)

WHEREAS, in exercise of statutory powers conferred under Section 15 of the Legal Metrology Act, 2009 (Act 1 of 2010), the undersigned Legal Metrology Officer conducted a physical verification at your commercial premises on 10-Sep-2026, whereupon the pre-packaged commodity specified in **Schedule-A** was drawn for inspection, physical measurement, and optical photogrammetry;

AND WHEREAS, mathematical measurement and multi-angle optical verification established that the subject package violates mandatory statutory labeling declarations required under Rule 6 of the Legal Metrology (Packaged Commodities) Rules, 2011, as detailed in **Schedule-C**;

NOW THEREFORE, you are hereby called upon to show cause in writing within **15 (FIFTEEN) DAYS** of receipt of this notice as to why criminal prosecution under **Section 36(1) of the Legal Metrology Act, 2009** should not be instituted against you before the Court of Chief Judicial Magistrate, or submit application for statutory compounding under Section 48 upon payment of the compounding sum stipulated herein.

SCHEDULE-A: SEIZED COMMODITY & PACKAGING SPECIFICATIONS

Commodity Name	FizzUp Lemon Drink (Carbonated Beverage)	Declared Net Qty	1000 ml (1 L)
Batch / Lot No.	FZ-2026-08B	Mfg / Pkg Date	15/08/2026 (Best Before: 6 Mo)
Package Geometry	Cylindrical PET Bottle (H: 282mm, D: 82mm)	PDP Surface Area	231.2 cm ² (Schedule-I Row 3)
Manufacturer / Packer	Great India Beverages Ltd., Ind. Area Phase-II, Haridwar, UK 249401	Country of Origin	India (Statutory Declared)

SCHEDULE-B: PHOTOGRAMMETRIC CALIBRATION & SENSOR DIAGNOSTIC TELEMETRY

Optical Quality Gate	Laplacian Blur Variance: 380.20 (>100.0) Specular Glare: 1.20% (<5.0%) — PASSED
Planar Scale Calibration	Fiducial ArUco 4x4 (Marker #42, 50.0 mm baseline); Planar Homography: 0.270 mm/px (Uncertainty k=2: ±0.02 mm)
OCR / Vision Pipeline	DBNet++ Polygon Localization + PP-OCrv4 Multilingual INT8 Engine (English & Devanagari Hindi, 98.4% Confidence)

[Continued on Page 2 — Schedule of Violations, Compounding Determination & Section 63 BSA Certificate]

SCHEDULE-C: SCHEDULE OF STATUTORY DEFICITS & CONTRAVENTIONS DETECTED

S.N.	Statutory Mandate & Rule	Prescribed Standard	Physical Observation	Statutory Contravention
1	Rule 6(1)(e) r/w Rule 18(1) & 23 Legal Metrology (PC) Rules, 2011	Single unambiguous MRP (incl. of all taxes); No secondary price alteration.	Primary label reads Rs. 45.00 . Altered via overprinted barcode sticker to Rs. 48.00 .	DUAL PRICING DEFICIT Overcharging Rs. 3.00 above original pre-printed MRP.
2	Rule 6(1)(k) / GSR 779(E) Mandatory w.e.f. 01/01/2022	Mandatory Unit Sale Price (USP) in Rs. / ml or Rs. / L declared on PDP.	No Unit Sale Price (Rs. 0.048/ml or Rs. 48.00/L) declared anywhere on container.	OMISSION OF MANDATORY USP Depriving consumers of statutory price transparency.
3	Rule 6(1)(d) & Table-I LMPC Minimum Font Schedule	Min font height 2.5 mm for PDP area 100 to 500 cm² (Row 3).	Net Qty numeral '1000' height verified at 2.62 mm (±0.02 mm).	COMPLIANT Meets Table-I minimum numeral font height standard.

STATUTORY COMPOUNDING ORDER & SETTLEMENT TERMS (SECTION 48 OF THE ACT)

Statutory Compounding Sum (First Offence under Section 36(1)): Rs. 25,000.00 (Rupees Twenty-Five Thousand Only) <i>Payable via Government e-Treasury (e-Gras / BharatKosh) under Major Head 1475</i>	Statutory Show Cause Window: 15 Calendar Days Mandatory Compliance Deadline: 25-September-2026 Compounding Authority: Assistant Controller of Legal Metrology, Gautam Buddha Nagar
--	---

SECTION 63 BHARATIYA SAKSHYA ADHINIYAM, 2023 (BSA 2023) — CERTIFICATE OF EVIDENCE

Statutory Certification under Section 63(4) of the Bharatiya Sakshya Adhiniyam, 2023 (Act No. 47 of 2023): I, K. R. Sharma , Legal Metrology Officer, hereby certify that: (1) The electronic records, optical measurements, and photogrammetric findings contained herein were produced by the automated diagnostic terminal ' NyayaDrishti-LM MK-IV ' during the regular course of official inspection duties; (2) The system was operating properly at all material times with lawful physical custody maintained; (3) Cryptographic hashes of original unrectified images and diagnostic logs were sealed at seizure into a tamper-evident SHA-256 Merkle Tree. • Hardware Terminal: Nirikshak Field Terminal MK-IV Operating System: Linux 6.8.0-Hardened x86_64 • Reference Clock Source: National Physical Laboratory (NPL-CSIR), New Delhi Atomic Clock via NTP (Stratum-1, ±2 ms) • SHA-256 Merkle Root: c2d3e4f5a6b7c8d9e0f1a2b3c4d5e6f7a8b9c0d1e2f3a4b5c6d7e8f9a0b1c2d3 • Evidence Bundle Digest: 7f8a9b0c1d2e3f4a5b6c7d8e9f0a1b2c3d4e5f6a7b8c9d0e1f2a3b4c5d6e7f8a
--

Dated at: Gautam Buddha Nagar, Uttar Pradesh
Date of Attestation: 10th September 2026
Issuing Authority: Office of the Assistant Controller,
Legal Metrology Department, Circle UP-GBN-01



Digitally Authenticated & Issued By:
K. R. SHARMA
Legal Metrology Officer (Inspector Grade-I)
Cadre Reg. / Badge No.: **DL-LM-2024-0042**
[AUTHENTICATED UNDER SEC. 63 BSA 2023]
DSC Token: SHA256-RSA-4096-7A9B3E2F81D4C0E5

STATUTORY ADVISORY: Under Section 36(1) of the Legal Metrology Act, 2009, whoever manufactures, packs, imports, sells, distributes, or offers for sale any pre-packaged commodity which does not conform to statutory labeling declarations shall be punished with fine up to **Rs. 25,000.00** for first offence, **Rs. 50,000.00** for second offence, and for subsequent offences with fine up to **Rs. 1,00,000.00** or with imprisonment. Failure to respond or compound within 15 calendar days will result in filing of formal prosecution before the Court of the Chief Judicial Magistrate, Gautam Buddha Nagar.